

KALE REALTY

DON'T SAY THIS TO AN UNREPRESENTED BUYER.

The listing agent's favorite line costs the buyer more than either of you thinks.

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**"YOU DON'T NEED
YOUR OWN
AGENT." THAT'S
NOT FREE ADVICE.**

The person saying it already represents the seller.
Now they're representing the buyer too, and the
buyer never agreed to it.

THAT SENTENCE COLLAPSES INTO DUAL AGENCY.

When a listing agent talks an unrepresented buyer out of getting their own agent and writes the deal instead, that's dual agency, representing both sides of one transaction. In Illinois, 225 ILCS 454/15-45 only permits it with informed written consent from every client, disclosed before it happens and confirmed again in writing at the offer. A buyer told "you don't need your own agent" almost never gets that disclosure. What they get is a faster close for the one agent who already owes a duty to the other side.

WHAT TO SAY INSTEAD WHEN AN UNREPRESENTED BUYER CALLS ON YOUR LISTING:

- 1 Say who you represent, first.**

"I represent the seller. You're welcome to your own agent, and it costs you nothing to have someone in your corner."
- 2 Only go dual if they insist, in writing.**

Illinois requires informed written consent from both sides, plus a second written confirmation when the offer is made. Skip either step and the file is exposed, not just the buyer.
- 3 Note that you disclosed it.**

A one-line file note or text confirming you offered representation protects you as much as it protects them.

THE TAKEAWAY

**THE BUYER'S
RIGHT TO THEIR
OWN AGENT
DOESN'T COST
YOU THE DEAL.
HIDING IT DOES.**